

Delivery Hero Kitchens Vendor Services Agreement

(the “**Agreement**”)

Based on

Delivery Hero Kitchens DB LLC
 (“DHK”)

And

Vkusno Russian Kitchen

Restaurant Name	Vkusno Russian Kitchen
Virtual Brands	
Stall Number	
Trade License Number	822051
Official Registered Address	Ibn Batutta, Jebel Ali, Dubai
Contact Person	Boutros
Email	accounts@bff.bar
Mobile Number	+971568217070
Country/Emirates	Dubai, United Arab Emirates
Restaurant Bank Details	
Account Name	
IBAN	

SWIFT Code	
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Delivery Hero Kitchens Commercials

Monthly Term Fees	AED 12,500
Kitchen Commission	3%
Talabat Commission	23%+2%
Utilities	Electricity, gas and ventilation of respective stall will be paid by the vendor
Vendor Services Agreement Date	15/9/2023
Equipment Move In Date	10/10/2023
Rent Commencement Date	15/10/2023
Exit Notice Period	3 months notice period
Security Deposit	2 monthly term fees
Gas Deposit	Gas deposit shall be paid by the vendor directly to the gas supplier prior to the start of operations

Vendor Commitments

Trade License	Vendor
VAT Certificate	Vendor
Compliance Documents	Vendor
Hygiene Products	Vendor
Equipment	Vendor
Stall Maintenance	Vendor
Equipment Maintenance	Vendor

This Agreement is effective as of the last date of the signature (the “**Effective Date**”) and supersedes any prior Commercial Terms Agreement(s) between the Parties covering the same

Territory(ies) or Territories. The below Terms incorporates in full the DHK Terms and Conditions and Schedules.

THIS AGREEMENT (the “**Agreement**”) is made and entered into as of 15/9/2023 by and between:

(1) **Delivery Hero Kitchens DB LLC** a limited liability company incorporated and registered in the United Arab Emirates whose registered office is City Walk, Dubai, UAE (“**DHK**”) and;

(2) **BFF MANAGEMENT L.L.C incorporated** and registered in the United Arab Emirates with trade license number 822051 whose registered office is at UAE (the “**Vendor**”);

(Hereinafter DHK and the Vendor may be referred to individually as the “**Party**” or collectively as the “**Parties**”).

Preamble:

Whereas, DHK owns a shared kitchen site, located in Business Bay and is willing to engage with the Vendor who has expertise in preparing food and beverages.

Whereas, based on a separate Letter of Agreement between DHK’s affiliate Delivery Hero Talabat DB L.L.C (“**Talabat**”) and the Vendor, Talabat will (i) receive and transmit customers’ orders to the Vendor, and, (ii) accept payments on behalf of the Vendor through Talabat Debit or Credit payment gateways, and (iii) provide the Talabat Go delivery services.

1. INTERPRETATION

1.1 The following definitions and rules of interpretation apply in this Agreement:

AED: Means the lawful currency of the UAE.

Amenities: Means the utilities ancillary to the DHK Site.

Applicable Law: Means all or any laws in the UAE including those which relate to the health and safety of all personnel, and or persons who visit the shared kitchen, or are in any way affected by the condition and operation of the shared kitchen and preparation and delivery of food and beverages; including any such rules and regulations and laws issued by a competent authority throughout the Agreement.

Business Day: This means any day other than a legal holiday in the UAE.

Effective Date: The date of the signature of the Agreement.

Rent Commencement Date: 15/10/2023

Equipment Move-in date: 10/10/2023

Common Area and Amenities: Means such roads, paths, entrance halls, corridors, lifts, staircases, landing, and other means of access in or upon the DHK Site, the use of which is necessary for obtaining access to and from the Kitchen Site as designated from time to time by DHK.

Conditions of Hire: Means the conditions of hire of the Kitchen Space made between the Vendor and DHK.

Confidential Information: Means any information of a confidential or proprietary nature concerning based on DHK and its affiliates, including, without limitation, details of its business methods, kitchen structure, the identity and any related information of its clients, customers, or suppliers, its pricing structure or margins, any financial, management, marketing, development information, intellectual property or other rights, arrangements or affairs, its terms of business with Vendors, customers or drivers, and any other information including but not limited to information relating to DHK's operations, processes, plans, product information, prices, know-how, designs, trade secrets, software, market, and opportunities.

Delivery Partners: Means persons who provide Product delivery services limited to Talabat and other Delivery Hero affiliates.

DHK Site: A hub where DHK hosts a collection of restaurants/brands with exceptional design to accommodate kitchen space for each brand with common areas and amenities held, managed, and owned by DHK and located in Business Bay

DHK Site Manager: Has the meaning set out in clause 2.6.

Intellectual Property Rights: Patents, utility models, rights to inventions, copyright and neighboring and related rights, trademarks and service marks, business names and domain names, rights in get-up and trade dress, goodwill, and the right to sue for passing off or unfair competition, rights in designs, database rights, rights to use, and protect the confidentiality of, confidential information (including know-how and trade secrets), and all other intellectual property rights, in each case whether registered or unregistered and including all applications and

rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms.

Kitchen Space: Means the unit on the DHK Site that is made available to the Vendor by DHK following the terms of this Agreement.

Kitchen Standards: Means the standards set out in the attached Schedule 1 in addition to the kitchen standards, policies, practices, and procedures relating but not limited to health and safety and food/personal hygiene, including those contained in the Vendor's operating manuals as may be updated from time to time and in compliance with any Applicable Laws.

Pre Signing Checklist: Means the Checklist set out in the attached Schedule 3

Pre-Going live checklist: Means the Checklist set out in the attached Schedule 4

Normal Operating Hours: Means 8:00 am to 3:00 am or such other hours or days as DHK in its absolute discretion may determine on fourteen (14) days' notice to Vendor.

Order: Means an order placed for Products that are submitted by the that results in origination and preparation of such Products at the Kitchen Space.

Product(s): Means the food and/or beverage product(s) prepared by the Vendor following an Order for delivery to Customer(s) through Talabat and other Delivery Hero affiliates (s) and, where the context requires, the Products ordered by and supplied to the Customer according to this Agreement.

UAE: Means the United Arab Emirates.

1.2 The schedules form part of this Agreement and shall affect as if set out in full in the body of this Agreement. Any reference to this Agreement includes the Schedules.

1.3 A person includes a natural person, corporate or unincorporated body (whether or not having a separate legal personality).

1.4 A reference to laws, in general, is a reference to all federal, local, national, and directly applicable supra-national laws as amended, extended, or re-enacted from time to time and shall include all subordinate laws made from time to time under them and all orders, notices, codes of practice and guidance made under them.

1.5 Unless otherwise specified, a reference to a statute or statutory provision is a reference to it as amended, extended, or re-enacted from time to time and shall include all subordinate

legislation made from time to time under that statute or statutory provision and all orders, notices, codes of practice and guidance made under it.

1.6 The terms and conditions set out below shall apply for the sale and delivery by Talabat and/or DHK's affiliates of Products prepared by the Vendor via the Kitchen Services at the Kitchen Space.

1.7 In the event of a conflict between the terms or conditions of this Agreement and any other terms and conditions in respect of the subject matter hereof, these terms shall prevail unless expressly otherwise agreed in writing.

2. KITCHEN SERVICES

Product Preparation and Facilities

2.1 DHK permits the Vendor to operate and perform Kitchen Services in the Kitchen Space following and subject to the terms of this Agreement and Local Applicable law.

2.2 DHK will equip the Kitchen Space with a regular hood, hand wash sink, insect killer. All other equipment (including freezer and chiller), utensils, shelves etc.. need to be provided by the vendor. Unless otherwise mentioned, as per the attached LOD.

2.3 DHK has full right and liberty at all reasonable times during the Term after giving reasonable written notice to the Vendor (except in the case of an emergency where no notice is required) to enter the Kitchen Space with or without appliances and workmen and others to view the state and condition of the Kitchen Space and to repair, replace and maintain the Kitchen Space, its infrastructure and utilities or the adjoining Site or other property of DHK. DHK has the absolute right to exercise any powers that may be granted to it by Applicable Laws and regulations.

2.4 DHK retains control and possession of the Kitchen Space, the Vendor shall have no right to exclude DHK from the Kitchen Space and the Vendor shall not have any interest in or control of the Kitchen Space or any property related thereto or connected therewith except any perishable goods and material bought and used by the Vendor for preparation of Products onsite in the Kitchen Space.

2.5 DHK shall be entitled at any time, to provide not less than 15 days notice requiring the Vendor to fully and completely move and transfer to an alternative space elsewhere within the Kitchen Space during the Term (and such space, the newly allocated premises shall be chosen by

DHK at its sole and unfettered discretion). In case of changing stalls, if there's a change in gas costs or the meter, DHK is responsible for bearing these costs not the vendor

2.6 DHK may appoint a site manager to facilitate services and operations for and at the Kitchen Space concerning the obligations of DHK under this Agreement. DHK will notify the Vendor of the designated DHK Site Manager (or any alternative contact) and their relevant contact details. The DHK Site Manager will be the Vendor's first point of contact for day-to-day business matters regarding the Kitchen Space and the Kitchen Services.

Vendor Promotion

2.7 Subject to joining the Kitchen to join DHK, the vendor shall be eligible for exclusive marketing and promotional activities; decided by DHK at its sole and unfettered discretion to drive orders and provide brand awareness. The latter shall be decided in writing by the Vendor and DHK.

3. VENDOR SITE AND OTHER OBLIGATIONS

3.1 The Vendor shall not (and shall have no power to) authorize any other person except its employees or authorized contractors and agents to attend to and make use of the Kitchen Space or the Amenities.

The Vendor employees should have the appropriate documentation and permissions to work inside the Kitchen Space, at any time.

The Vendor shall accept the Kitchen Space in an "as is, where is" condition from the Commencement Date. The execution and the delivery of this Agreement shall constitute irrevocable, final, and conclusive evidence that the Vendor has accepted the Kitchen Space for this Agreement and that the Kitchen Space complies with the requirements of the Vendor. The execution of this Agreement shall be conclusive proof between DHK and the Vendor that the Kitchen Space was and is in every way satisfactory to the Vendor and in the condition required by the Vendor.

3.2 The Vendor agrees and undertakes his Kitchen Space while abiding by Dubai municipality food safety Standards and Procedures and other UAE applicable laws.

3.3 The Vendor agrees and undertakes, not to use the Kitchen Space for any other purpose than the one specified in this Agreement, not to do any modification whatsoever without the prior

written consent of DHK, and that no damage is caused. The Vendor will be able to use their own POS system and DHK shall not be liable for accommodating their POS integration needs.

3.4 The Vendor agrees and undertakes not to allow any other Delivery Provider other than Delivery Hero aggregators.

3.5 The Vendor agrees and undertakes:

(a) to comply with any instructions given by the DHK Site Manager and his/her representatives concerning but not limited to; fire risk management, health, and safety compliance, and food safety compliance.

(b) to observe and abide by all DHK rules and regulations that DHK may issue and notify the Vendor of from time to time including those governing the Vendor's use of the Kitchen Space, DHK Site, and the Common Area and Amenities.

(c) to notify DHK of

(i) any notices or contact or visits by any regulatory bodies or competent authority;

(ii) any circumstance which is likely to impact the Normal Operating Hours for whatever reason; and

(iii) all reportable instances involving accidents or injuries at work or near misses.

(d) to comply with the Vendor's obligations set out herein or as may be notified by DHK from time to time including regarding repair and maintenance as set out in Schedule 2;

(e) at the expiry or termination of the Agreement, to leave the Kitchen Space in as good a condition as at the Commencement Date, and in a clean and tidy condition and to remove any of the Vendor's equipment and goods from the Kitchen Space and the condition of any Site used by the Vendor during the Term shall at the end of such Term be in an "as is, where is" condition subject to the Vendor's obligation to repair and maintain such Site following the obligations set out herein or as may be notified by DHK from time to time;

(f) to keep DHK indemnified against and from any actions, losses, damages, liabilities, charges, claims, costs, and expenses which may be paid, incurred, suffered, or sustained by DHK arising by the breach, purported or otherwise, by the Vendor of its obligations under this Agreement or growing out of the failure of the Vendor to perform any of its obligations hereunder.

(g) After a ramp-up period of 70 days, if the order volume remains below 45 orders/day per stall), the Vendor shall ensure to increase the daily order volume to more than 45 daily orders

within 14 days, and if it fails to do so, the Vendor shall, in consultation with DHK, operate at least 1 additional virtual brand from the same Kitchen Space. If the Vendor also fails to operate an additional brand, then he/she is under the obligation of activating marketing campaigns on Talabat with a budget equal or higher than 3% of GMV (Gross Merchandise Value). The marketing campaigns shall remain active for 3 complete months OR until the minimum daily order volume has been reached.

(h) to cover any additional costs incurred in the customization of the unit.

(i) that all food supplied to the Vendor should be processed, as no preparation is allowed in the kitchen.

4. VENDOR OPERATIONS & RESOURCES

Operations & Resources

a. The Vendor shall provide the Kitchen Services following the agreed Kitchen Standards as set out in Schedule 1 no later than seven (7) days from the date of the Kitchen Space being deemed operational by the terms of this Agreement and the Applicable Law.

b. The Vendor shall during the Normal Operating Hours, prepare Products in the Kitchen Space for the collection and delivery of respective Orders by Talabat and/or DHK's affiliates to Customers. The Vendor shall allocate sufficient resources to enable it to provide the Kitchen Services following the Kitchen Standards at the Kitchen Space in respect of all sales of Products for Orders to be delivered during Normal Operating Hours.

c. The Vendor shall abide by all the points stipulated in the 'DH Kitchens standard operating procedures' provided by DHK. In case of non-compliance with the aforementioned SOPs, DHK reserves the right to not onboard the Vendor's brands on the DHK Site, which shall not affect the rent commencement date and exit penalties. .

d. The Vendor shall procure and maintain in force such permits, certificates, registrations, licenses, and approvals as are required by the Vendor to carry out its activities in connection with the Agreement including but not limited to following all Applicable Laws and as set out in the Kitchen Standards.

e. All employees and representatives of the Vendor working at or operating from the Kitchen Space (the "Vendor Personnel") shall be deemed for all purposes (including compensation and

employee benefits) to be employees or representatives solely of the Vendor and not employees or representatives of DHK or any other person related to or connected with the DHK Site.

f. The employees shall be and remain under the Vendor's visas but will be under the Vendor permit that allows them to work in the kitchen. This permit will be renewed on a 6-months basis.

g. All compensation and benefits of the employees will be covered by the Vendor.

h. The Vendor shall ensure its Vendor Personnel acts in good faith and always cooperates fully with DHK and its representatives.

i. The Vendor represents, warrants, and undertakes that:

ii. the Vendor Personnel are appropriately experienced, qualified, and trained to provide the Kitchen Services; and

iii. The Vendor has complied with all employment-related requirements, rules, and regulations including obtaining valid visas, meeting the Vendor's contractual obligations, employment-related or otherwise, regarding Vendor Personnel and other persons authorized or contracted by the Vendor.

Quality Assurance

a. The Vendor shall maintain the highest quality standards in the provision of the services in accordance with Applicable Law (including in relation to hygiene, food safety, dish preparation and presentation, cool chain (such as rules and regulations governing time and temperature controls required for food safety), confidence in management systems, structural requirements and procedures from raw material supply to finished product quality delivered to the customer, etc.) and to refrain from any actions that could have an adverse impact on the quality of the Products. The Vendor is responsible for ensuring that high standards of food hygiene are maintained in their area of responsibility and that all precautions are taken to safeguard the health of the end customers. Further, the Vendor shall comply with any instructions or other directions defined by DHK in regard to quality standards to the extent Applicable Law does not provide stricter conditions.

b. The Vendor shall have in place a written food safety and hygiene program implemented and maintained based on the applicable Applicable Law. Upon request, the Vendor shall provide to DHK a copy of the food safety and hygiene program. Without limitation, the food safety and hygiene program should cover at a minimum:

- Procurement of food from reputable suppliers;
- Safe storage and handling of food;
- Cleaning and disinfection procedures for equipment and premises; and
- Transport used to deliver food should be appropriate, clean and where applicable temperature controlled.

c. The Vendor shall ensure that the Vendor Personnel has food hygiene training in accordance with Local Laws. Upon request, the Vendor shall provide to DHK copies of the training certificates. Food handlers and business operators must be trained to the required level of instruction, for example:

- Food handlers: Basic food safety training in catering/food service operations;
- Supervisors: Intermediate food safety training in catering/food service operations; and
- Manager/owner: Advanced food safety training in catering/food service operations.

d. In order to further ensure that the Vendor is complying with the instructions given by DHK, and acting with the utmost good faith, DHK is entitled to perform unannounced, open or hidden, inspections of the Kitchen Space. DHK, through its representatives and/or contractors, is entitled to enter the Kitchen Space at any time physically or remotely via information and communications technology in order to verify compliance with its instructions and to make any other assessments relevant to this Agreement. DHK will take adequate precautions to interfere as little as possible with the operations of the Vendor. Further, DHK is entitled to install camera surveillance in the DHK Site and Kitchen Space in accordance with Applicable Law.

e. The Vendor shall immediately notify DHK in the event of:

- (a) Any complaint raised by any third party including end customers and governmental authorities that it becomes aware of regarding the quality and safety of the Products; and
- (b) Any presence of contamination, microorganisms or bacteria considered harmful to human health that may affect the processing and quality of the Product in the Vendor's premises or in the premises of any supplier of the Vendor.

f. If any food safety-related issues, including hospitalization, the fatality of end customers, and/or increased repetitive complaints by end customers, DHK reserves the right to take the Vendor offline during the investigation.

g. The Vendor shall abide by all the parameters of the food quality check that DHK may issue to the Vendor from time to time, whereby the score on every parameter should not be less than 8/10 (scoring to be undertaken by DHK).

h. In the event DHK incurs any fine due to food safety/legal non-compliance or negligence by the vendor, the fine shall be paid by the vendor, or DHK reserves the right to recover the same from Vendor's month end sales.

5. ORDERING PROCESS

To facilitate the ordering process, the Vendor Shall use the system provided by DHK before or on the Commencement Date for Order processing. From time to time, DHK may at its sole discretion update or provide an alternative system for the Order Management System from the one initially provided, and the Vendor shall return any prior system provided to it by DHK in reasonable condition subject to normal wear and tear as is customary in the industry

6. PRICING AND PAYMENT

1) Pricing of Menu Items in the Materials shall reflect the pricing of such items as published in the Vendor's menu ("Menu Price").

2) DHK shall be entitled to the following fees ("Fees") (excluding VAT or any other taxes or charges) set out in the table below:

Category	Price
Monthly Term Fees	AED 12,500

Kitchen Commission	3%
Talabat Commission	23%+2%
Tablet and registration fee in DHK	Zero/Free
Utilities charges per month	As per actuals

3) The Vendor shall provide to DHK a security deposit in the amount of two (2) Monthly Term Fee in advance of the Commencement Date and the start of the operations. In the event the Monthly Term Fee is not paid by the Vendor within 30 days from the due date, DHK shall have the right, at its sole discretion, to encash the cheques provided by the vendor.

4) The calculation of the Monthly Term Fee shall start at the agreed upon commencement date mentioned above.

5) DHK will sign a platform agreement with Talabat to onboard the vendor on their platforms.

6) DHK will receive the payment from Talabat directly into DHK's bank account after Talabat deduct their agreed-on commission

7) DHK will deduct its commission mentioned above, from the amount received by Talabat and pay the remaining amount to the Vendor. Payment will be transferred to the vendor based on their initial contract with Talabat.

8) The Monthly Term Fee will be deducted from the monthly sales of the vendor or any available balance in DH aggregators.

9) If the Vendor fails to make any payment due under this Agreement by the due date for payment, then, without limiting DHK's remedies, DHK may take any actions available to it under the Applicable Law.

- 10) Any exercise by DHK of its rights shall not limit or affect any other rights or remedies available to it under this Agreement or otherwise.
- 11) All payments payable to DHK by the Vendor under this Agreement shall become immediately due and payable: (a) on termination of this Agreement for any reason; or any of the other applicable events listed in clause 8 of the Agreement.
- 12) The Vendor agrees to pay for the utility consumption (electricity, gas, water and Ventilation) shown on the individual sub-meter of the unit, or as per the monthly consumption.
- 13) The Vendor shall submit a full list of equipment with power loads to the DHK team for their review and approval as per Pre Going Live Checklist
- 14) The Monthly Term Fee shall be paid for the next month in full and 1-month in advance of the Commencement Date, and thereafter in respect of any renewal Term the Term Fee shall be paid in full and 1-month in advance.
- 15) The Trade Permit/Kiosk renewed every year needs to be paid by the Vendor.
- 16) The Fees set out above in clause 6.2 are exclusive of amounts in respect of VAT and any other taxes. The Vendor shall pay such additional amounts in respect of such taxes as are chargeable in respect of the Fees and the matters set out in this Agreement and all such amounts shall be set out in the applicable invoice issued according to clause 6.5.
- 17) DHK may at any time, without notice to the Vendor, set off any liability of the Vendor to it against any liability it has to the Vendor, whether either liability is present or future, liquidated or unliquidated, and whether or not either liability arises under this Agreement. Any exercise by DHK of its rights under this clause shall not limit or affect any other rights or remedies available to it under this Agreement or otherwise.
- 18) In the event the Vendor defaults in Payments to DHK for a period exceeding 60 days after the Payment due date, DHK shall have the right, at its sole discretion, to move the equipment out of the Kitchen.
- 19) DHK reserves the right to recover the dues from vendor's other branches in Talabat/other DH entities in case of non-payment in DHK.

7. CONFIDENTIALITY

- a. The Vendor and its Personnel undertakes that it shall, at all times during the Term of this Agreement and for two (2) years after its termination or expiry:
- i. keep confidential all Confidential Information;

- ii. not disclose any Confidential Information to any other party; and
 - iii. not use any Confidential Information for any purpose other than as contemplated by the Agreement; and
 - iv. not disclose the terms of this Agreement to any other party.
- b. Disclosure under clause 7.a may be made only to the extent necessary for the purposes contemplated by this Agreement, as required by law, or where that Confidential Information in question is or becomes public knowledge through no fault of the Vendor or its staff including Vendor Personnel.
- c. The provisions of this clause 7 shall continue in force following the termination of this Agreement for any reason.
- d. The Vendor acknowledges that damages alone would not be an adequate remedy for any breach of this clause 7 and that DHK shall be entitled to the remedies of injunctions, specific performance, or other equitable relief for any threatened or actual breach of this clause 7.

8. INTELLECTUAL PROPERTY

- a. Each Party reserves all rights in its confidential information. No rights or obligations in respect of a Party's confidential information other than those expressly stated in this Agreement are granted to the other party or to be implied from this Agreement. In particular, no license is hereby granted directly or indirectly under any patent, invention, discovery, copyright, or other Intellectual Property Right held, made, obtained, or licensable by either Party now or in the future.

9. TERM AND TERMINATION

- a. This Agreement shall commence on the Commencement Date and shall continue for one (1) year thereafter ("Term") and such Term will automatically and successively be renewed for one (1) year period unless terminated following this Agreement.
- b. In the event a party wishes to terminate the agreement, the terminating party shall give a (3) three months 'prior written notice to the other party.

c. In the event the vendor decides to terminate the agreement before the end of the term of the agreement, the vendor shall provide a (3) three months prior written notice to DHK and DHK shall have the right to en-cash the security deposit.

d. Without affecting any other right or remedy available to it, DHK may terminate this Agreement with immediate effect in the event the Vendor fails to cure any breach of a payment obligation within one (1) month after written notice of such breach from DHK. Either Party may terminate this Agreement at any time if: (a) the other Party fails to cure any material breach (other than a payment breach) within thirty (30) calendar days after written notice, (b) the other Party commits a breach that is both material and by its nature incurable, (c) a receiver is appointed for the other Party or its property, (d) the other Party makes an assignment for the benefit of its creditors, (e) there is reasonable cause to believe that the other party is insolvent, (f) proceedings are commenced by, for, or against the other Party under any bankruptcy, insolvency, or debtor's relief law and are not dismissed within a thirty (30) calendar day period, (g) the other Party liquidates or dissolves or attempts to do so, or (h) the Vendor assigns or purports to assign this Agreement in breach of its provisions, (i) the other Party commits regulatory or civil violations.

e. On termination of this Agreement and all vendors' financial obligations settled to DHK, each Party shall promptly:

i. return to the other Party all equipment, materials, and property belonging to the other Party (if any);

ii. return to DHK all documents and materials (and any copies) containing DHK's Confidential Information;

iii. erase all DHK and/or DHK's affiliates' Confidential Information from its computer systems (to the extent possible); and

iv. on request, certify in writing to the other Party that it has complied with the requirements of this clause.

f. DHK may terminate the Agreement for breach of any provisions of this Agreement (including failure to meet the Kitchen Standards), termination of the DHK Site lease between DHK and the

owner of the property, or for any other reason whatsoever by giving 30 days written notice to the Vendor according to this Agreement.

g. The expiration or termination of this Agreement for any reason will not release either Party from any liabilities or obligations set forth herein which: (a) the Parties have expressly agreed will survive any such expiration or termination; or (b) remain to be performed or by their nature would be intended to be applicable following any such termination or expiration.

i. Termination of this Agreement shall not affect any rights, remedies, obligations, or liabilities of the Parties that have accrued up to the date of termination, including the right to claim damages in respect of any breach of the Agreement which existed at or before the date of termination.

j. DHK shall provide the training to the Vendor with no additional cost, and DHK shall not issue any fine for the first 60 days or will not terminate the contract due to non-compliance of the Vendor during this period.

10. GOOD STANDING & INSURANCE

a. On the Commencement Date and each subsequent renewal Term, the Vendor shall provide a certificate of good standing issued by a reputable bank licensed to operate and based in the UAE with which the Vendor has its business account, in a form and substance acceptable to DHK and confirming that the Vendor is in good standing and has the financial ability to satisfy its liabilities towards third parties.

b. The Vendor shall provide DHK with certificates of insurance for the policies as specified in clause 11.2 before execution of this Agreement and each renewal Term or upon demand if requested so by DHK.

11. LIABILITY AND INDEMNITY

a. The Vendor acknowledges and agrees that it shall be solely responsible for any claims against DHK and/or its affiliates from Customers or any other person in respect of any matter relating to, or arising from (directly or indirectly) the Menu Items and Products including description, quality, content or packaging, or DHK's affiliates and under this Agreement including without limitation, allegations or claims:

i. that the Menu Items do not correspond with the descriptions set out on the Materials (including, without limitation, indications that particular Menu Items are gluten-free, nut-free, or

are suitable for vegetarians and/or vegans) of and by DHK or any other forum or format in which DHK operates and conducts its business.

ii. that the Product is improperly cooked or is not otherwise fit for consumption or palatable;

iii. that the Product has not been appropriately packaged,

save, in each case, to the extent that any such failure is directly caused by DHK's gross negligence or wilful misconduct.

b. Without prejudice to clause 11.a the Vendor shall be solely responsible for any claims against DHK and/or its affiliates from Customers that the Products are cold (when it should be hot) or hot (when it should be cold) or otherwise as the Products are customarily prepared in the food and beverage industry, on delivery (save where, and to the extent, that this is as a result of Talabat's failure to deliver the food within a reasonable time, and for the avoidance of doubt, delivery within twenty (20) minutes of pick-up from the Vendor shall be deemed to be within a reasonable time).

c. The Vendor shall indemnify and keep indemnified DHK against all costs, claims, and losses to which DHK may become subject in respect of all matters for which the Vendor is responsible under clause 11.a and clause 11.b of this Agreement.

d. The Vendor shall defend, indemnify and hold harmless DHK, its personnel, representatives and its affiliates from and against any claims, damages, liabilities, or losses (including any loss of, or damage to, any property and/or data of, or injury to or death of, any person) and expenses

of any kind whatsoever (including the costs in connection with defending against any of the foregoing or in enforcing this indemnity) incurred or suffered by the indemnified persons arising

from or in connection with any wilful or negligent act or omission by the Vendor or its personnel (including Vendor Personnel), representatives or subcontractors and/or any breach by the Vendor of this Agreement or Applicable Laws or arising directly or indirectly out of the performance by the Vendor of its obligations under this Agreement.

e. The Vendor shall defend, indemnify and hold harmless the indemnified persons from and against any taxes, demands, penalties, or other charges that may be made by the competent authorities (inside and outside the UAE) against the Indemnified Persons or any payments made by the Indemnified Persons in respect of such taxes, demands, penalties or other charges (inside

and outside the UAE) including relating to the provision of the Products and any services by the Vendor which have not been earlier notified or agreed to by DHK in writing.

f. DHK shall not be liable for any loss or damage to the Vendor's property incidental upon the Vendor's occupation of the Kitchen Space or its use of the Amenities or Common Parts.

g. DHK shall not be liable for any loss or damage to the property of any visitor, invitee, or employee of the Vendor.

h. If DHK incurs any liability whatsoever incidental upon the use by the Vendor, its visitors, invitees, or employees (including Vendor Personnel), of the Kitchen Space, the Vendor fully indemnifies DHK against such liability.

i. DHK will not because of any representation, implied warranty, condition or other terms, or any duty at law or under the express terms of the Agreement, be liable for any loss of profit or any indirect, special, or consequential loss, damage, costs, expenses or other claims (whether caused by delivery drivers, servants or agents or otherwise).

j. Nothing in the Agreement limits or excludes a Party's liability for death or personal injury caused by its gross negligence, wilful misconduct, or fraud.

12. NOTICES

a. Any notice or other communication is given under this Agreement shall be in writing, in English, and shall be delivered by i) hand against receipt, ii) transmitted by courier (with waybill confirmation); or iii) by email with a confirmation of receipt to the relevant party as follows:

i. to DHK at City Walk, Dubai, UAE

ii. to Vendor at BFF MANAGEMENT L.L.C and marked for the attention of ELIAS SAID ABOU RAHAL

or as otherwise specified by the relevant party by notice in writing to the other Party.

b. Any notice is given following clause 12. a will be deemed to have been received:

i. if delivered by hand, on the acknowledgment of receipt or signature of a delivery receipt;

ii. if sent by email, when dispatched and an electronic receipt is confirmed.

When a notice is received during a day that is not a Business Day (in the place of receipt) or after 5 pm local time on a Business Day, it shall be deemed to have been received on the next Business Day (at such place of receipt).

13. REPRESENTATIONS AND WARRANTIES

a. The Vendor represents and warrants to DHK as follows:

a) it has the absolute right, power, and capacity to execute and deliver this Agreement, to perform its obligations hereunder, and to consummate the transactions contemplated hereby;

b) it is an entity duly organized, validly existing, and in good standing, under the laws of its jurisdiction of organization;

c) the execution and delivery of this Agreement, the performance of its obligations under this Agreement, and the consummation of the transactions contemplated hereby will not conflict with or result in any violation of or default under (i) any applicable law by which it is bound, (ii) any provision of its memorandum or articles of association, (iii) any agreement or other instrument it

is a party to or by which it or any of its properties are bound, or (iv) any permit, franchise, judgment, decree, statute, order, rule or regulation applicable to it or its business or properties;

i. it is not a party to any pending litigation, arbitration, dispute resolution, administrative or criminal proceedings, and no such litigation, arbitration, dispute resolution, administrative or criminal proceedings are following threatened by or against it;

ii. no governmental, administrative or regulatory investigation or inquiry is in progress and none are pending, and no written notices have been received by it from any governmental, administrative or regulatory authority;

iii. no order has been made by any competent authority or resolution passed for the liquidation or the appointment of a liquidator to the Vendor or any affiliated or associated entity or person;

iv. no moratorium has been sought or has been granted in respect of the Vendor;

v. the Vendor has not proposed or agreed to a compromise or an arrangement with any of its creditors; and

- vi. the Vendor is not unable to pay its debts.

14. FORCE MAJEURE

Neither party will be responsible for any failure or delay in its performance under this Agreement (except for the payment of money) due to causes beyond its reasonable control, including, but not limited to, labor disputes, strikes, lockouts, internet, and online system failure, shortages of or inability to obtain labor, energy, raw materials or supplies, war, acts of terror, riot, acts of God or governmental action. In the case that a force majeure event continues for more than thirty (30) calendar days, the Party not affected shall be entitled to terminate this Agreement or any Term (as relevant) with notice in writing.

15. NO PARTNERSHIP OR AGENCY OR TENANCY

- a. Nothing contained in this Agreement shall constitute or be deemed to constitute a relationship of agency, partnership, or joint venture between the Parties and none of the Parties shall have any authority to represent, bind or commit the other Party in any manner or to incur expenditure in the name or for the account of the other Party unless otherwise agreed in writing.
- b. Nothing contained in this Agreement shall constitute or be deemed to constitute a relationship of landlord and tenant between the Parties by way of this Agreement.

16. GOVERNING LAW AND DISPUTE RESOLUTION

- a. This Agreement and the relationship between the Parties shall be governed by and construed in accordance with the laws of the United Arab Emirates.
- b. In the event of any dispute, difference, claim between, controversy, or question among the Parties, directly or indirectly, arising at a
- c. Any time under, out of, in connection with, or related to this Agreement, its subject matter, or any term, condition, or provision hereof, the Parties shall refer the matter to and submit to the jurisdiction of the Courts of Dubai

17. UAE CONDITION PRECEDENT

- a. This Agreement shall be subject to the execution of a lease agreement by DHK for the DHK Site and obtaining of the required licenses/permits for the DHK Site by DHK.
- b. This Agreement shall be subject to the execution of a Letter of Agreement between Talabat and its affiliates and the Vendor.

18. GENERAL

- a. Either party may assign, novate or otherwise dispose of any or all of its rights and obligations under this Agreement to any affiliate without the prior written consent of the other party or (2) any other third party subject to obtaining the prior written consent of the other party, such consent not to be reasonably withheld.
- b. No waiver by DHK of any breach by the Vendor of the Agreement shall be considered as a waiver of any subsequent breach. A waiver of any term of the Agreement shall be effective only if given in writing and signed by DHK.
- c. No failure or delay on the part of any party in exercising any right under the Agreement shall operate as a waiver of such right.
- d. If one or more of the provisions of the Agreement are found to be unlawful or otherwise unenforceable, those provisions shall be deemed severed from the remainder of the Agreement.
- e. A person who is not a party to the Agreement shall not have any rights to enforce any term of the Agreement.
- f. This Agreement and any agreements contemplated herein or therein, including any schedules, amendments, or ancillary documents thereto, constitute the entire agreement among the parties about the subject matter hereof and supersedes all prior agreements, understandings, negotiations, and discussions, whether oral or written, between the Parties in connection with the subject matter hereof except as specifically set forth herein.

g. Each Party will from time to time hereafter and upon any reasonable request of any other Party, execute, make or cause to be made, all such further acts, deeds, assurances, certificates, and things as may be required to more effectively implement the true intent of this Agreement.

IN WITNESS WHEREOF, this Agreement has been executed and delivered by the duly authorized representatives of DHK and Vendor as of the date first written above.

BFF MANAGEMENT L.L.C	DELIVERY HERO KITCHENS DB LLC
_____	_____
Signature	Signature
Name:	Name:
Title:	Title:
Date:	Date:

SCHEDULE 1 – KITCHEN STANDARDS

Type	Standard Required	Review Mechanism
Vendor's compliance with its operating procedures, the Kitchen Services, and Kitchen Standards	Compliance to DHK SOPs	Monthly review with DHK Operations team. Including reporting any breaches, risks, or near misses.

Independent health and food safety audits to be obtained from an accredited third-party auditor	Minimum of 80%	Quarterly basis with reports provided to DHK within 2 working days of receipt
Municipality ratings	A or higher	The vendor must apply for a re-assessment if a score of C or lower is obtained
Maintenance of fitness to work records for all staff and to notify DHK of any immediately		Notification to DHK immediately to be available for review by DHK upon request
Maintenance of accident book on-site and to notify DHK of any reportable workplace accidents or injuries instances or near misses		Notification to DHK immediately and records to be available on site for review by DHK.
A weekly rota of staff		Available for DHK's review on-site upon request

Compliance with a cleaning schedule		
Maintain a written policy of cooking times and raw ingredient supply details		Available for DHK's review on-site upon request
Average food is ready prep time	Less than 10 mins	Monthly review with DHK Operations team. Weekly review in case of high prep time.
Share of orders with vendor delays > 5 mins	Less than 15%	Monthly review with DHK Operations team. Weekly review in case of high vendor delay.
Vendor Fail Rate	Less than 5%	Monthly review with DHK Operations team. Weekly review incase of high fail rate.
Ratings	4.5	Monthly review with DHK Operations team. Weekly review in case of poor ratings.

Public holidays opening dates and hours		To be agreed between the parties
Monthly review meeting with Vendor and DHK (or such alternative representatives as agreed between the parties)		To be agreed between the parties

SCHEDULE 2 – REPAIR AND MAINTENANCE

Action	Responsibility
Electricity, gas of respective unit (LPG) and ventilation	Vendor
Kitchen equipment in common areas	DHK (unless misuse or negligence by Vendor)
Kitchen equipment in the internal kitchen area including freezer and chiller.	Vendor
Small hand-held equipment	Vendor
Small kitchen tools and supplies	Vendor
Order tablet and printer	DHK (or, at DHK's sole discretion, Talabat)

Internet connection for receiving orders	DHK
Fire suppression system	DHK
Cleaning of all internal kitchen areas (including but not limited to floors, walls, ceilings, cupboards and surface areas, kitchen equipment, tools, bins)	Vendor (chemicals and materials to be approved by DHK)
Cleaning supplies for use in internal kitchen and pot wash areas (chemicals and materials including handwash and hand sanitizer)	Vendor (chemicals and materials to be approved by DHK)
Cleaning of common areas	DHK
Cleaning supplies for use in common areas (chemicals and materials)	DHK
Disposable hygiene products (including but not limited to face masks, hair nets, beard nets, gloves, sleeves, paper towels, garbage bags)	Vendor

Extract hood and filter clean	DHK is responsible for internal hard-to-reach spaces. The vendor must keep filters and visible areas clean.
High-level extract clean	DHK
Grease trap maintenance	DHK
Oil supply used storage and collection	Vendor / DHK
Pest control	DHK
Rubbish collection	DHK from the main garbage room. Vendor within each unit.
Order Dispatching	DHK
Staff lockers	DHK

CCTV for outside grounds of DHK Site	DHK
Ancillary space management	DHK
Business rates/water rates	DHK
Registration of Trade Permit	Vendor
Registration of food watch	Vendor
Responsibility for HACCP system with full copies to be held on the DHK Site	DHK
Insurances of the kitchen	DHK/Vendor
DHK site license application	DHK

Schedule 3 - Pre Signing Checklist

Question	
Mist Hood Required?	NO
List of virtual brands	
Does the vendor have a valid trademark for the virtual brands?	
Does the vendor have a valid trade license?	YES
Does the vendor have a VAT certificate?	YES
Does the vendor require modification in the kitchen?	NO
Is the vendor using POS or Talabat device	YES
3 Phase required?	

Does the vendor require any MEP adjustments?	
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Schedule 4 - Pre Going Live Checklist (TO BE FILLED BY THE DHK OB TEAM)

Question	
Trade permit submitted?	
Equipment layout with load schedule shared?	
Valid company trade license in your existing location (dubai) shared?	
Valid staff occupational health cards submitted?	
Work permit of staff submitted?	
Six months valid: visa, passport and Emirates ID copy of your team members submitted?	

Employee clear photo passport submitted?	
Valid labor card copy submitted?	
PIC certificate: at least 1 employee in each shift need to have PIC certificate (food safety certificates) submitted?	
Basic Food safety training for all your employees working in DH kitchens	
Stock (cold & dry) transportation vehicle permit (in case food will be delivered by your own transportation vehicle) submitted?	
NOC addressed to MOHRE submitted?	
Operation NOC submitted?	